

MyHOAAppeal - Educational worksheet

Management Company Roles in HOA Fines

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about manager authority vs board decision-making. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of manager authority vs board decision-making.
- * Make the decision point explicit: Your appeal should answer who actually imposed or can reverse the fine with exhibits, not adjectives.
- * Compare options deliberately: Know whether you are closer to Board-imposed fine, Manager-issued fine, or Attorney-directed fine.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to manager authority vs board decision-making.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about manager authority vs board decision-making. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on manager authority vs board decision-making.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to who actually imposed or can reverse the fine.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around manager authority vs board decision-making.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to who actually imposed or can reverse the fine, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to manager authority vs board decision-making
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address who actually imposed or can reverse the fine
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether board-imposed fine or manager-issued fine better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing manager authority vs board decision-making arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control who actually imposed or can reverse the fine.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on manager authority vs board decision-making; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around manager authority vs board decision-making.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on manager authority vs board decision-making. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering manager authority vs board decision-making?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run

this tree for manager authority vs board decision-making. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about manager authority vs board decision-making.

Q (quality): Does your packet clearly address who actually imposed or can reverse the fine?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue manager authority vs board decision-making. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on manager authority vs board decision-making, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve manager authority vs board decision-making arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Board-imposed fine | Manager-issued fine | Attorney-directed fine

Typical signal

[Board-imposed fine] Clear written basis for board-imposed fine

[Manager-issued fine] Partial or contested basis for manager-issued fine

[Attorney-directed fine] High risk if you only have attorney-directed fine

Owner priority

[Board-imposed fine] Preserve board-imposed fine with indexed proof
[Manager-issued fine] Convert manager-issued fine into a documented record
[Attorney-directed fine] Do not rely on attorney-directed fine alone
Board / manager reaction
[Board-imposed fine] Harder to dismiss when exhibits are complete
[Manager-issued fine] May stall or ask for more information
[Attorney-directed fine] Often treated as insufficient without follow-up writing
Next educational move
[Board-imposed fine] Advance the formal path for manager authority vs board decision-making
[Manager-issued fine] Send a clarifying letter addressing who actually imposed or can reverse the fine
[Attorney-directed fine] Collect missing documents before arguing substance
Escalation risk if ignored
[Board-imposed fine] Lower if you stay on deadline
[Manager-issued fine] Medium - ambiguity can harden into denial
[Attorney-directed fine] Higher - attorney-directed fine gaps feed collections narratives

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